

IN THE SUPREME COURT OF INDIA

CRIMINAL APPELLATE JURISDICTION

CRIMINAL APPEAL NO. 3671 OF 2026

(Arising out of SLP (Crl.) No.5771 of 2025)

SHUBHANGI

Appellant(s)

VERSUS

LEENI & ANR.

R-1: Leeni

R-2: The State of Maharashtra,
Through Senior Inspector, Sadar Police Station,
Civil Lines, Nagpur Maharashtra

Respondent(s)

O R D E R

Heard learned counsel for the appellant and learned counsel for the respondent No.2/State of Maharashtra. The respondent No. 2 has assisted the Court being connected virtually to the proceedings.

2. Leave granted.

3. The present appeal assails the order dated 24.07.2024 passed by the High Court of Judicature at Bombay at Nagpur in CRLWP No. 69/2024 by which the petition seeking discharge of the appellant in R.C.C. No. 2607/2018 for the offences punishable under Sections 468, 471, 473 of the IPC has been rejected.

4. Learned counsel for the appellant submitted that the

appellant is the second wife of the former husband of the respondent No. 1 and the allegation against her is that she had submitted a forged decree of divorce with her first husband in order to show that she was competent to marry the former husband of the respondent No. 1.

5. It was submitted that such contention was based solely on the judgment and decree of divorce granted to the appellant from her former husband, in which the date of the marriage of the appellant to her former husband had been wrongly typed. It was submitted that the complaint was that later on, the wrong date was corrected by cutting the incorrect date by the clerk concerned. However, when a complaint was filed, there was a full-fledged inquiry made by the Court concerned and ultimately, it has been held that there was no forgery and the correction was made *bona fide* as it was an error apparent on the face of the record. It was further submitted that once the decree and grant of divorce to the appellant from her previous husband is not in dispute, there cannot be any culpability, much less criminal culpability, attributed to her.

6. Learned counsel submitted that the date of marriage of the appellant to her first husband pales into the background when the fact remains that such marriage was dissolved prior to marriage of the appellant with the former husband of the

respondent No.1. It was further submitted that the appellant had filed only the certified copy of the decree of divorce as she had received from the Court which was prior to the error being noticed and corrected by the concerned Court clerk.

7. Learned counsel for the State of Maharashtra submitted that in the inquiry, it has been found that there was no role or deliberate act or collusion of the Presiding Officer and nobody had suffered because of such correction/alleged criminal act.

8. Respondent No.1 vehemently opposed the prayer of the appellant and submitted that the appellant had produced a document which had incorrect recording and the correction made without going through the legal way, would amount to the document being forged in the eyes of law. It was submitted that the appellant also did not file the corrected version.

9. Having considered the matter in its entirety, we find that a case for interference has been made out. The appellant cannot be faulted for producing before a Court, a decree, certified copy of which was obtained by her. It is not in dispute that a decree of divorce was granted to the appellant from her former husband prior to the date of her contracting marriage with the former husband of the respondent No.1. It is also not in dispute that the said decree was later on corrected in the original records and the so-called correction was also with regard to the

date of marriage of the appellant with her former husband, which probably would not be very relevant in the facts and circumstances of the case.

10. Accordingly, the appeal is allowed. The order impugned stands quashed. The appellant is discharged from R.C.C.No.2607/2018.

11. Pending applications, if any, stand disposed of.

.....J.
(AHSANUDDIN AMANULLAH)

.....J.
(MANMOHAN)

NEW DELHI
AUGUST 05, 2026.

ITEM NO.8

COURT NO.10

SECTION II-A

S U P R E M E C O U R T O F I N D I A
RECORD OF PROCEEDINGS

Petition(s) for Special Leave to Appeal (Crl.) No(s).
5771/2025

[Arising out of impugned final judgment and order dated 24-07-2024 in CRLWP No. 69/2024 passed by the High Court of Judicature at Bombay at Nagpur]

SHUBHANGI

Appellant(s)

VERSUS

LEENI & ANR.

Respondent(s)

IA No. 110452/2025 - CONDONATION OF DELAY IN FILING THE SPARE COPIES

IA No. 83102/2025 - EXEMPTION FROM FILING C/C OF THE IMPUGNED JUDGMENT

IA No. 163396/2025 - PERMISSION TO APPEAR AND ARGUE IN PERSON

IA No. 37422/2026 - PERMISSION TO FILE ADDITIONAL DOCUMENTS/FACTS/ANNEXURES

Date : 05-08-2026 This matter was called for hearing today.

CORAM : HON'BLE MR. JUSTICE AHSANUDDIN AMANULLAH
HON'BLE MR. JUSTICE MANMOHAN

For appellant(s) : Ms. Prachi Bajpai, Adv.
Mr. Prashant Padmanabhan, AoR

For Respondent(s) : Respondent-in-person

Ms. Ira Mahajan, Adv.
Mr. Siddharth Dharmadhikari, Adv.
Mr. Aaditya Aniruddha Pande, AoR
Mr. Shrirang B. Varma, Adv.

O R D E R

Leave granted.

2. Criminal Appeal stands disposed of in terms of the signed order which is placed on the file.

3. Pending application(s), if any, shall stand disposed of.

(SACHIN KUMAR SRIVASTAVA)
COURT MASTER (SH)

(ANJALI PANWAR)
ASSISTANT REGISTRAR